

SCALIA, J., dissenting

ment of the law against a third party. Despite its liberality, the Administrative Procedure Act does not allow such suits, since enforcement action is traditionally deemed “committed to agency discretion by law.” 5 U. S. C. § 701(a)(2); *Heckler v. Chaney*, 470 U. S. 821, 827–835 (1985). If provisions such as the present one were commonplace, the role of the Executive Branch in our system of separated and equilibrated powers would be greatly reduced, and that of the Judiciary greatly expanded.

Because this provision is so extraordinary, we should be particularly careful not to expand it beyond its fair meaning. In my view the Court’s opinion does that. Indeed, it expands the meaning beyond what the Constitution permits.

I

It is clear that the Federal Election Campaign Act of 1971 (FECA or Act) does not intend that *all* persons filing complaints with the Federal Election Commission have the right to seek judicial review of the rejection of their complaints. This is evident from the fact that the Act permits a complaint to be filed by “[a]ny *person* who believes a violation of this Act . . . has occurred,” 2 U. S. C. § 437g(a)(1) (emphasis added), but accords a right to judicial relief only to “[a]ny *party aggrieved by* an order of the Commission dismissing a complaint filed by such party,” § 437g(a)(8)(A) (emphasis added). The interpretation that the Court gives the latter provision deprives it of almost all its limiting force. *Any voter* can sue to compel the agency to require registration of an entity as a political committee, even though the “aggrievement” consists of nothing more than the deprivation of access to information whose public availability would have been one of the consequences of registration.

This seems to me too much of a stretch. It should be borne in mind that the agency action complained of here is not the refusal to make available information in its possession that the Act requires to be disclosed. A person de-